

# **EMPLOYMENT AGREEMENT BETWEEN APEX SOLUTIONS CORP. AND SYNERGY ENTERPRISES PVT. LTD.**

Between: **Apex Solutions Corp.** (Employer) and **Synergy Enterprises Pvt. Ltd.** (Employee)

Effective Date: 2022-06-11

Termination Date: 2026-06-11

Governing Law: the laws of India

## **1. Notices**

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

## **2. Payment Terms**

Synergy Enterprises Pvt. Ltd. shall pay Apex Solutions Corp. a fee of Rs. 1,03,00,000 (Rupees Forty-two lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Synergy Enterprises Pvt. Ltd.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

## **3. Limitation of Liability**

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 42,00,000 (Rupees Forty-two lakh Only). This limitation does not apply to obligations arising from Clause 2 or indemnification obligations.

## **4. Insurance**

Apex Solutions Corp. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 42,00,000 (Rupees Forty-two lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 42,00,000 (Rupees Forty-two lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Apex Solutions Corp. shall provide evidence of such insurance upon request.

## **5. Severability**

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

## **6. Intellectual Property**

All intellectual property rights in deliverables created specifically for Synergy Enterprises Pvt. Ltd. under this Agreement shall vest in Synergy Enterprises Pvt. Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Apex Solutions Corp. grants Synergy Enterprises Pvt. Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Synergy Enterprises Pvt. Ltd.'s internal business purposes.

## **7. Dispute Resolution**

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Delhi. The award shall be final and binding.

## **8. Scope of Services**

Apex Solutions Corp. shall provide to Synergy Enterprises Pvt. Ltd. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

## **9. Assignment**

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

## **10. Termination**

Either Party may terminate this Agreement by giving 90 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Synergy Enterprises Pvt. Ltd. shall pay for all Services rendered up to the date of termination.

## **11. Term**

This Agreement shall commence on the Effective Date, 2022-06-11, and shall continue until 2026-06-11, unless earlier terminated in accordance with Clause 8. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

## **12. Governing Law and Jurisdiction**

This Agreement shall be governed by and construed in accordance with the laws of India. Subject to Clause 3, the courts of Delhi shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

## **13. Audit Rights**

Synergy Enterprises Pvt. Ltd. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Apex Solutions Corp.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Apex Solutions Corp.'s operations. The cost of the audit shall be borne by Synergy Enterprises Pvt. Ltd., unless the audit reveals an overcharge of more than five percent (5%), in which case Apex Solutions Corp. shall bear the cost.

## **14. Amendments**

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

## **15. Non-Solicitation**

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

**16. Subcontracting**

Apex Solutions Corp. shall not subcontract any material part of the Services without the prior written consent of Synergy Enterprises Pvt. Ltd.. Where subcontracting is permitted, Apex Solutions Corp. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 13 and Clause 5.

**17. Entire Agreement**

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

**18. Force Majeure**

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

**IN WITNESS WHEREOF**

**Employer**

Apex Solutions Corp.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

**Employee**

Synergy Enterprises Pvt. Ltd.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_